

		may be invoked only by a petition of a party to an arbitration agreement. This language is neither vague nor ambiguous, and it makes perfectly good sense—because no one other than a party to the arbitration agreement ought to be allowed to interfere with the arbitration process.” (<i>One World Networks Integrated Technologies, Inc. v. Dutch</i> (2002) 103 Cal.App.4th 1038, 1044 [cleaned up].) This court has already found that IHD and Nura Defendants are not parties to any arbitration agreement with Plaintiff. Thus, IHD and Nura Defendants lack standing to invoke section 1281.2 to maintain a stay based on an arbitration between Plaintiff and individuals who are no longer parties to this action. The motion is GRANTED. The Court lifts the stay in this action.
14	24-01431041 SOCAL CONSTRUCTION FUND CONTROL, LLC vs. DEVIANTE LLC	1) Motion to Compel Answers to Form Interrogatories 2) Motion to Compel Answers to Special Interrogatories 3) Motion to Compel Answers to Special Interrogatories 4) Motion to Compel Deposition (Oral or Written) 5) Motion to Compel Production MOTION NO. 1: Cross-Complainant Lorez GP’s motion to compel Cross-Defendant Kal Milan Construction, Inc., to serve full and complete verified answers, without objections, to Form Interrogatories - Construction Litigation, Set No. One, is MOOT. On November 24, 2025, Cross-Defendant served verified responses, without objections, to the discovery request. Therefore, the Motion is MOOT. Cross-Defendant is ordered to pay \$682.50 in sanctions to Cross-Complainant within 30-days of notice of this ruling. Moving party to give notice. MOTION NO. 2: Cross-Complainant Lorez GP’s motion to compel Cross-Defendant Kal Milan Construction, Inc., to serve full and complete verified answers, without objections, to Special Interrogatories, Set No. One, is MOOT. On November 24, 2025, Cross-Defendant served verified responses, without objections, to the discovery request. Therefore, the Motion is MOOT. Cross-Defendant is ordered to pay \$682.50 in sanctions to Cross-Complainant within 30-days of notice of this ruling. Moving party to give notice. MOTION NO. 3: Cross-Complainant Lorez GP’s motion to compel Cross-Defendant Kal Milan Construction, Inc., to serve full and complete verified answers and

to produce documents, without objections, to Requests for Production of Documents, Set No. One, Nos. 1 through 51, is MOOT.

On November 24, 2025, Cross-Defendant served verified responses, without objections, to the discovery request. Therefore, the Motion is MOOT.

Cross-Defendant is ordered to pay \$682.50 in sanctions to Cross-Complainant within 30-days of notice of this ruling.

Moving party to give notice.

MOTION NO. 4:

Cross-Complainant Lorez GP moves to compel Cross-Defendant Khalil Abdallah Milan to serve full and complete verified answers, without objections, to Special Interrogatories, Set No. One, Interrogatory Nos. 1 through 28, is MOOT.

On November 24, 2025, Cross-Defendant served verified responses, without objections, to the discovery request. Therefore, the Motion is MOOT.

Cross-Defendant is ordered to pay \$682.50 in sanctions to Cross-Complainant within 30-days of notice of this ruling.

Moving party to give notice.

MOTION NO. 5:

Cross-Complainant Lorez GP's motion to compel Cross-Defendant Khalil Abdallah Milan ("Milan") to appear and testify at his noticed deposition is GRANTED.

Code of Civil Procedure section 205.450 provides in pertinent part: "(a) If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 205.230, without having served a valid objection under Section 205.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice."

Cross-Complainant noticed the second session of Milan's deposition for January 15, 2026, based on an email exchange with Milan's counsel in which Milan's counsel stated that "we will go with one of the January dates (13th or 15th). I will check and get back to you." (Levine Decl., ¶ 2, Ex. 2.) Milan's counsel did not get back to Cross-Complainant regarding the deposition dates and Cross-Complainant served the Notice of Continued Deposition on Milan on December 29, 2025. (Levine Decl., ¶ 2, Ex. 1.) Milan did not object to the Notice of Continued Deposition,

		therefore, Cross-Complainant proceeded with the deposition. (Levine Decl., ¶ 2, 4.) However, neither Milan nor his counsel appeared for the continued deposition and Cross-Complainant had to take an Affidavit of Nonappearance. (Levine Decl., ¶ 4.) Milan has opposed the Motion and states on January 21, 2026 (after the filing of this Motion), Milan's counsel provided dates for the continued deposition and that Milan remains available for his deposition. Milan is ORDERED to appear for his deposition on a mutually convenient date within 10-days of the service of this order. Milan is also ORDERED to pay \$1,636.20 in sanctions to Cross-Complainant within 30-days of the date of service of the notice of this order. Moving party to give notice.
15	23-01333121 <i>Takashima vs. Lin</i>	1) Motion to Be Relieved as Counsel of Record 2) Motion to Be Relieved as Counsel of Record The motions of Uplift Law PC to withdraw as attorney of record for Defendants Russell Lin and Virus International are DENIED. Uplift Law provides a declaration from its paralegal stating the mandatory form Order Granting Attorney's Motion To Be Relieved As Counsel-Civil (MC-053) was served on Defendants along with the other moving papers. However, the Court ordered counsel to file the missing orders as well. Counsel failed to do so after being given three chances to properly file its motions. Thus, the Court denies Uplift Law's 1. motions as procedurally defective for its failure to comply with California Rules of Court, rule 3.1362(e).